

5.	30-2025-01503259 Mehling vs. Meech	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Portions of Complaint Defendants Randall K. Meech and Karen M. Meech demur to the fifth cause of action of Plaintiffs' First Amended Complaint.(ROA 28) Defendants also seek to strike put punitive damages language from the FAC. (ROA 30) 1. <u>DEMURRER</u> Based on applicable law, the subject Demurrer is SUSTAINED with <u>20 days leave to amend.</u> ‘[W]aste is conduct (included in this word both acts of commission and of omission) on the part of the person in possession of land which is actionable at the behest of, and for the protection of the reasonable expectations of, another owner of the same interest in land ... Thus, waste is, functionally, a part of the law which keeps in balance the conflicting desires of persons having interests in the same land.’ (5 Powell on Real Property (1974) § 636, pp. 5–6.)” (<i>Cornelison v. Kornbluth</i> (1975) 15 Cal.3d 590, 597–598....) Waste evolved and broadened from a cause of action designed to protect owners of succeeding estates against the improper conduct of the person in possession which harmed and affected the inheritance, to a legal means by which any concurrent non-possessory holders of interest in the land are enabled to prevent or restrain harm to the land committed by persons in possession. (<i>Id.</i>, at p. 598.) “ ‘To constitute waste, there must be an injury to the inheritance (Civ.Code, § 818), ...’ ”⁶ (<i>Hardie v. Chew Fish Yuen</i> (1968) 258 Cal.App.2d 301, 304.) “Injury to the inheritance, which under the common law would be termed ‘waste’ can only be proved, with the possible exception of a few instances, by evidence of acts which injuriously affect the market value of the property.” (<i>Eastman v. Peterson</i> (1968) 268 Cal.App.2d 169, 175; <i>Sallee v. Daneri</i> (1942) 49 Cal.App.2d 324, 327.) Proof of “conduct which has resulted in substantial depreciation of the market value of land” establishes waste. (<i>Ibid.</i>) [<i>Smith v. Cap Concrete, Inc.</i> (1982) 133 Cal.App.3d 769, 775–776. Internal citations omitted.] The defendant must be “ ‘under a duty to preserve and protect the property involved.’ ” (<i>Id.</i> at p. 1212, 122 Cal.Rptr.3d 417; see <i>Hickman v. Mulder</i> (1976) 58 Cal.App.3d 900, 908, [willful mismanagement and neglect to do acts necessary to preserve property amount to bad faith waste].) [<i>Schellinger Brothers v. Cotter</i> (2016) 2 Cal.App.5th 984, 1000.] Here, Plaintiff has pled no facts that the parties have an interest in the same land, or that Defendants were under a duty to protect Plaintiff’s land. While Plaintiff makes the argument that the case involves common areas, which are owned by both, Plaintiff does not allege damage to the common area, but rather, to Plaintiff’s property. 2. <u>MOTION TO STRIKE</u> As to the Motion to Strike, two causes of action seek punitive damages: the 5th for Waste, and the 7th for Gross Negligence/Willful Misconduct.
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6.	30-2025-01471307 Velasquez vs. John Doe, Trustee of the Ebnajos Trust	1. Case Management Conference 2. Motion to Quash Service of Summons Defendant Abraham Nasiri Mourshaki move this Court for an order quashing the purported service of summons and complaint. Based on applicable law, said Motion to Quash is DENIED. First, it appears Defendant has made a general appearance herein thereby waiving any defect in service. A general appearance need not be a formal, technical step or act. “What is determinative is whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed.” (<i>Sanchez v. Superior Court</i> (1988) 203 Cal.App.3d 1391, 1397, 250 Cal.Rptr. 787.) “The appearance will be considered ‘general’ in nature if the defendant acts in a manner, ‘showing of a “purpose of obtaining any ruling or order of the court going to the merits of the case”.’ ” [<i>Nam Tai Electronics, Inc. v. Titzer</i> (2001) 93 Cal.App.4th 1301, 1307 [113 Cal.Rptr.2d 769, 772] <u>disapproved of by Pavlovich v. Superior Court</u> (2002) 29 Cal.4th 262.] Here, arguably appearing at <i>two</i> CMCs, submitting <i>two</i> CMC statements indicating an intent to file a demurrer and MSJ, seeking <i>and obtaining</i> a fee waiver (with the Court serving notice of the order), and informing the Court that no FAC had been served; and thus prompting the Court to order POS to be filed, is sufficient to establish a recognition of the Court’s authority to proceed herein. Second, the motion is untimely. The motion to quash must be made at defendant's initial appearance in the action, on or before the last day to plead “or within any further time that the court may for good cause allow.” [CCP § 418.10(a); see <i>Marriage of Obrecht</i> (2016) 245 CA4th 1, 16-17, 199 CR3d 438, 451-452.] Here, the POS (<i>not provided by Defendant</i>, but in ELF as ROA 10) indicates Defendant was served via substitute service on 4/30/2025 at 23 SILKTASSEL #140. RANCHO SANTA MARGARITA. CA., 92688. By 9/4/2025 he was in Court stating that he had not been served because service was at his son’s residence. Yet, this motion was not filed until almost a year later on 4/9/2026. As such, it is untimely. There is no good cause for allowing a Motion to be heard almost 1 ½ after service when Defendant has knowledge of (allegedly defective) service. Third, Defendant’s attack on service is also somewhat unsupported. He does not identify the date, address, recipient, or mailing associated with the substituted service he challenges, does not attach the proof of service, and offers no declaration from the son at whose home he says the papers were left. So, the Court is left to speculate that the POS at issue is ROA 10, but it is unclear. HOWEVER, the Court notes a First Amended Complaint (“FAC”) was filed on 10/27/2025. (ROA 24.) Thereafter, on 1/15/2026 the Court directed Counsel for plaintiff (s) to file the proof of service